

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 17-cv-00025-WYD-KHR

VALERIE JEFFERS,

Plaintiff,

v.

OCWEN LOAN SERVICING, LLC,

Defendant.

FINAL JUDGMENT

THIS MATTER came before the Court and a jury of ten duly sworn to try the matter on February 20, 2018 the Honorable Wiley Y. Daniel, Senior United States District Judge, presiding. On February 22, 2018, the jury returned its verdict as follows:

Verdict Form

We, the jury, being duly empaneled and sworn to try the above-captioned case, do unanimously find our Verdict as follows:

I. **Fair Credit Reporting Act Claims**

Question 1: Has the Plaintiff proved by a preponderance of the evidence that Defendant negligently violated the Fair Credit Reporting Act as defined in Instruction Nos. 7, 12 and 13?

Answer: YES

Question 2: Has the Plaintiff proved by a preponderance of the evidence that Defendant willfully violated the Fair Credit Reporting Act as defined in Instruction Nos. 10, 11, 12 and 13?

Answer: YES

Question 3: If you answered "YES" to Question 1 or Question 2, or both, then state the amount of Plaintiff's actual damages on her Fair Credit Reporting Act claims:

\$25,000.00

Question 4: If you answered "YES" to Question 2, then state the amount of Plaintiff's punitive damages on her Fair Credit Reporting Act claim:

\$360,000.00

II. **Breach of Contract Claim**

Question 5: Has the Plaintiff proved by a preponderance of the evidence that Defendant breached the contract?

Answer: YES

Question 6: If you answered "YES" to Question 5, has the Plaintiff proved by a preponderance of the evidence that she incurred damages on her Breach of Contract claim as defined in Instruction Nos. 20, 21 and 22?

Answer: YES

If your answer to Question 6 is "YES," in what amount?

\$15,000.00

Proceed to sign the appropriate form of certification section.

IT IS THEREFORE

ORDERED that judgment is hereby entered in favor of Plaintiff, Valerie Jeffers, and against Defendant, Ocwen Loan Servicing, LLC, in the total amount of \$25,000.00 on Plaintiff's Fair Credit Reporting Act Claims. It is further

ORDERED that judgment is hereby entered in favor of Plaintiff, Valerie Jeffers, and against Defendant, Ocwen Loan Servicing, LLC, in the total amount of \$360,000.00 for punitive damages on Plaintiff's Fair Credit Reporting Act Claims. It is further

ORDERED that judgment is hereby entered in favor of Plaintiff, Valerie Jeffers, and against Defendant, Ocwen Loan Servicing, LLC, in the total amount of \$15,000.00 on Plaintiff's Breach of Contract Claim. It is further

ORDERED that post-judgment interest shall accrue on the total amount of \$400,000.00 at the legal rate of 1.97% per annum from the date of entry of judgment. It is further

ORDERED that Plaintiff shall have its costs by the filing of a Bill of Costs with the Clerk of this Court within fourteen (14) days of entry of judgment, and pursuant to the procedures set forth in Fed. R. Civ. P. 54(d)(1) and D.C.COLO.LCivR 54.1.

DATED at Denver, Colorado this 23rd day of February, 2017.

FOR THE COURT:

JEFFREY P. COLWELL, CLERK

s/ Robert R. Keech
Robert R. Keech,
Deputy Clerk

APPROVED AS TO FORM:

s/ Wiley Y. Daniel
WILEY Y. DANIEL,
SENIOR UNITED STATES DISTRICT JUDGE